

Anubhav Jaiswal v. State of U.P. & 4 Others

Allahabad High Court · Division Bench · 27 August 2014 · WRIT - C No. 44867 of 2014 · **Writ petition disposed of (remand for pro-rata determination after notice to the prior owner)**

HEADNOTE

Under Clause 4.3 of the U.P. Electricity Supply Code, 2005 outstanding electricity dues are the first charge on the premises (Clause 4.3(f)(iv)); but where the property has been legally sub-divided, the dues are apportioned pro-rata (Clause 4.3(g)) and a new connection to a sub-divided portion is released on payment only of the share attributable to that portion (Clause 4.3(h)). A subsequent purchaser of part of a premises cannot be saddled with the dues of the entire premises; the licensee must determine the pro-rata share afresh, after notice to the original owner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3(g)

Pro-rata apportionment of arrears on a sub-divided premises

QUESTION

Can a purchaser of part of a sub-divided premises be required to clear the entire premises' electricity dues before a new connection, or only his pro-rata share?

HOLDING

Only his pro-rata share. Though outstanding dues are the first charge on the premises (Clause 4.3(f)(iv)), on a legal sub-division they are apportioned pro-rata (Clause 4.3(g)) and a connection to the sub-divided portion is given on payment of that portion's share alone (Clause 4.3(h)); the licensee cannot demand the whole. The matter is remanded for fresh pro-rata determination after notice to the original owner.

LIMITING FACTS

The premises passed through four successive owners; the petitioner is the fourth purchaser of a part. As he had not furnished full information, the original refusal was not itself faulted, but a Clause 4.3 determination was directed.

PRINCIPLE TAGS

arrears-apportioned-pro-rata-on-subdivision

On a legal sub-division of a premises, outstanding electricity dues are divided pro-rata; a purchaser of a portion is liable only for that portion's share.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE APPORTIONED SHARE AND THE PETITIONER'S EXACT LIABILITY

Left to fresh determination by the Executive Engineer after notice to the original owner (Islam Beg); no figure was fixed.